

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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GIOVANNY GERMAN,

Plaintiff,

-against-

THE CITY OF NEW YORK,
P.O. DENIS ROCHA and P.O. JOHN DOE,

Defendants.

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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 16, 2022

SIVIN, MILLER & ROCHE, LLP

By Edward Sivin
Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

The City of New York: 100 Church Street, New York, NY 10007

P.O. Denis Rocha: c/o NYPD 40th Precinct, 257 Alexander Ave., Bronx, NY 10454

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

GIOVANNY GERMAN,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
P.O. DENIS ROCHA and P.O. JOHN DOE,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN, MILLER & ROCHE, LLP, as and for his
complaint herein, alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of
Bronx, City and State of New York.

2. That at all times herein mentioned, defendant The City of New York (hereinafter
“the City”) was and is a municipal corporation, duly organized and existing under and by virtue of
the laws of the State of New York.

3. That prior to the institution of this action and within ninety (90) days from the
dates when the causes of action accrued herein, a notice of claim and intention to sue was duly
served upon and filed with defendants on behalf of plaintiff; that this action was not commenced
until the expiration of thirty (30) days after such notice of claim and intention to sue was presented
and defendants have neglected and/or refused to make adjustment or payment thereon, and this
action is being commenced within one year and ninety days after the causes of action accrued
herein.

4. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the “NYPD”).

5. That at all times herein mentioned, defendant P.O. Denis Rocha (hereinafter “Rocha”) was and is an officer employed by the NYPD.

6. That at all times herein mentioned, Rocha was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Rocha was acting under color of state law.

8. That at all times herein mentioned, defendant P.O. John Doe (hereinafter “Doe”), whose name is fictitious in this lawsuit because plaintiff does not know his identity, was and is an officer employed by the NYPD.

9. That at all times herein mentioned, Doe was acting within the course and scope of his employment with the NYPD.

10. That at all times herein mentioned, Doe was acting under color of state law.

THE FACTS

11. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

12. That on or about March 26, 2022, at the St. Mary’s subway station, located at or around Southern Blvd. and St. Mary’s Street, in the County of Bronx, City and State of New York, the City of New York, by and through its agents, servants and/or employees, including officers with the NYPD, including Rocha and Doe (hereinafter “the officers”), without a warrant and without probable cause or reasonable suspicion to believe that plaintiff had committed or was about to commit a crime, criminal offense, or violation, and without otherwise being justified, forcibly seized

plaintiff without his consent, and then proceeded to use force against plaintiff that was unjustified and excessive under the circumstances.

13. That the use of force by the officers included, but was not limited to, slamming plaintiff against a wall, forcibly bringing plaintiff to the ground, handcuffing plaintiff tightly, and dragging plaintiff up a flight of stairs.

14. That during this use of force against plaintiff, the officers also arrested plaintiff, again without a warrant and without probable cause.

15. That after arresting plaintiff, the officers forcibly imprisoned plaintiff at various locations, including but not limited to a police vehicle and a hospital.

16. That on March 26, 2022, the officers also initiated a prosecution of plaintiff by charging him with a crime or violation, Disorderly Conduct, of which plaintiff was innocent, of which the officers knew plaintiff to be innocent, and of which the officers did not have probable cause to believe plaintiff to be guilty.

17. That in support of the prosecution, Rocha signed a Criminal Court Appearance Ticket in which he made accusations against plaintiff that were false, and that Rocha new to be false.

18. That as a result of this prosecution, plaintiff was required to appear in court and suffered a deprivation of his liberty.

19. That on or about April 14, 2022, the charge against plaintiff was dismissed and the criminal prosecution terminated favorably to plaintiff.

20. That Rocha and Doe observed the illegal and unconstitutional conduct of their fellow officers, had reasonable opportunities to intervene to prevent and/or stop that conduct, but deliberately chose and failed to do so.

21. That the aforesaid actions by the officers were intentional and malicious in nature.

22. That as a result of the foregoing, plaintiff suffered and continues to suffer physical, emotional, and psychological injuries, loss of liberty, embarrassment, and humiliation, loss of employment opportunities, and has been otherwise damaged.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault and Battery Under NY State Law)

23. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

24. That the aforementioned actions of the officers constitute an assault and battery of plaintiff, for which the officers are liable under New York state law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/Imprisonment Under NY State Law)

25. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

26. That the aforementioned actions of the officers constitute a false arrest and false imprisonment of plaintiff, for which the officers are liable under New York state law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution Under NY State Law)

27. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

28. That the aforementioned actions of the officers constitute a malicious prosecution of plaintiff, for which the officers are liable under New York state law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST ROCHA and DOE
(42 USC § 1983 Claim Arising From Fourth, Fifth and Fourteenth Amendment Violations)

29. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

30. That the aforementioned actions of Rocha and Doe constitute illegal seizures and deprivations of liberty of plaintiff in violation of rights guaranteed to plaintiff under the Fourth, Fifth, and Fourteenth Amendments to the US Constitution, and entitle plaintiff to recover damages pursuant to 42 USC § 1983.

FIFTH CAUSE OF ACTION AGAINST ROCHA and DOE
(42 USC § 1983 Claim Arising From Failure to Intervene)

31. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

32. That the aforementioned actions of Rocha and Doe in failing to intervene to prevent and/or stop the illegal and unconstitutional actions by their fellow officers resulted in violation of rights guaranteed to plaintiff under the Fourth, Fifth, and Fourteenth Amendments to the US Constitution, and entitle plaintiff to recover damages pursuant to 42 USC § 1983.

SIXTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training and Retention)

33. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

34. That the aforesaid incident and resulting damage to plaintiff were due to the negligence of the City, its agents, servants and/or employees, in the hiring, training, and retention of the involved NYPD officers, including Rocha and Doe.

SEVENTH CAUSE OF ACTION AGAINST THE CITY
(“Monell” Claims)

35. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

36. That the aforesaid incident and resulting damage to plaintiff were due to a deliberate indifference by the City to a pattern of unconstitutional conduct by Rocha and Doe, and entitle plaintiff to recover damages under 42 U.S.C. § 1983 and pursuant to *Monell v. Dep’t of Social Servs. Of N.Y.C.*, 436 U.S. 658.

37. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against defendants Rocha and Doe, and attorney's fees against all defendants pursuant to 42 USC § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
December 16, 2022

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By *Edward Sivin*
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
December 16, 2022

Edward Sivin

EDWARD SIVIN